Nestle India Limited vs Mr. Rupam Mondal on 5 February, 2026

ADSL-40
Ct No.16
05.02.2026
TN

FMA 1414 of 2025
IA No: CAN 1 of 2025

Nestle India Limited
Vs.
Mr. Rupam Mondal

Mr. Indranil Roy, Sr. Adv.,
Mr. Biswajit Manna
.....for the appellant

Sk. Afrojul Haque
....for the State

Re: CAN 1 of 2025

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1. An adjournment is sought on behalf of the respondent. However, such adjournment is refused.

2. We find from the previous orders passed in connection with the appeal that already an ad interim order of stay has been passed.

3. Since no change of circumstance thereafter is pointed out, CAN 1 of 2025 is disposed of without costs, by making the interim order of stay passed earlier absolute till disposal of the appeal.

4. Accordingly, there shall be stay of operation of the impugned judgment and order dated July 23, 2025 passed by the West Bengal Food Safety Appellate Tribunal in Food Safety Appeal No. 02/2025 till disposal of the appeal.

Re: FMA 1414 of 2025

5. Since the respondent is represented through counsel, service of notice of the appeal on the respondent is dispensed with and the appeal be treated to be ready as regards service.

6. The records from the appellate tribunal shall be brought by special messenger at the cost of the appellant, to be deposited within a week from date.

7. The appellant shall prepare and file the requisite number of paper books within six weeks from the date of service of notice of arrival of the appellate tribunal's records on the learned Advocate for the appellant.

8. Liberty to the parties to mention the appeal for enlistment as and when the same is ready for hearing.

(Sabyasachi Bhattacharyya, J.) (Biswaroop Chowdhury, J.)